

Sanjay Bajaj v. State of U.P. — bill-correctness writ relegated to Clause 6.5

High Court of Judicature at Allahabad · Division Bench · 28 November 2019 · WRIT - C No. 38982 of 2019 · **Writ disposed of; relegated to Clause 6.5; 40-day stay of coercive action.**

HEADNOTE

A writ challenging only the correctness of an electricity bill and a recovery citation founded on it will not be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available. The consumer may approach the Executive Engineer within two weeks; the authority is to decide by a speaking order after hearing, within three weeks of receiving a certified copy. Coercive action stayed for 40 days.

FACTUAL SUMMARY

Sanjay Bajaj petitioned the Allahabad High Court to quash a recovery citation dated 9 October 2019 demanding Rs. 5,56,711 plus other charges, and to restrain coercive recovery. Counsel for the petitioner and the Electricity Department were heard. The only dispute raised was the correctness of the electricity bill on which the citation rested. The Division Bench did not examine that billing dispute on the writ side.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness dispute; recovery citation; alternate remedy

HOLDING

A writ raising a dispute as to the correctness of an electricity bill, and seeking to quash a recovery citation and restrain coercive recovery, is not to be entertained when the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available. The consumer may approach the Executive Engineer; the application is to be considered and decided in accordance with law by a speaking order after opportunity of hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND VALIDITY OF THE RECOVERY CITATION DATED 9.10.2019

Writ not decided on merits; relegated to the Executive Engineer under Clause 6.5. ¶ 1